IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-512

CP (CAA) No.-114/230/232/ND/2022 (2nd Motion)

IN THE MATTER OF:

Adgyde Solution Pvt. Ltd & Anr. And Momagic Technologies Pvt. Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 12.04.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. GP Madaan, Mr. Shiva
For the Respondent	:
For the IT Deptt.	: Mr. Abhishek Maratha, Sr. St. Counsel, Mr. Pratyaksh Gupta, Mr. Akshat Singh, Jr. St. Counsels
For the OL	: Ms. Hemlata Rawat, Mr. Aayushmaan Vatsyayana
For the RD	: Ms. Niharika Tanwar

ORDER

Heard the submissions made by Ld. Counsel for the Petitioners. This is a 2nd Motion amalgamation proposal wherein two transferor companies and one transferee company are involved. Jr. St. Counsel for the Income Tax Department is present and prayed for one week's time as a last opportunity to file their report. It is made clear that if the reports are not filed within next week days, the matter will be proceeded further on the strength of the affidavit filed by the Petitioners to pay the tax dues, if any, claimed by the Income Tax Department.

Proxy counsel for RD is present and raised an objection with regard to the appointed date. Ld. Counsel for the Petitioner has clarified that Petitioners are agreeable to defer the appointed date indicated in the application as the

accounts relating to earlier years are already finalized. The appointed date is treated as 01.04.2022. Proxy counsel for the OL is present and submitted that they have filed their report. List the matter on **26.04.2023.**

S/d-
(DR. BINOD KUMAR SINHA)
MEMBER (T)

S/d-
(P.S.N PRASAD)
MEMBER (J)

Amit Tiwari
12.04.2023